

PROBATE COURT OF FRANKLIN COUNTY, OHIO
JEFFREY D. MACKEY, JUDGE

ESTATE OF _____, DECEASED

CASE NO. _____

**ENTRY APPROVING SETTLEMENT AND DISTRIBUTION OF
 WRONGFUL DEATH AND SURVIVAL CLAIMS**

Upon hearing the application to approve settlement and distribution of the wrongful death and survival claims, the Court:

- ☐ Approves the proffered settlement of \$ _____.
- ☐ Orders payment of \$ _____ to be applied to decedent's funeral and burial expenses.
- ☐ Orders payment of \$ _____ to the fiduciary for services rendered with respect to the wrongful death and survival claims.
- ☐ Orders payment of \$ _____ to the attorney for reimbursement of case expenses and \$ _____ for attorney fees for services rendered with respect to the wrongful death and survival claims.
- ☐ Orders that the net proceeds of \$ _____ be allocated \$ _____ to the wrongful death claim and \$ _____ to the survival claim. The amount allocated to the survival claim shall be considered an asset of the estate and shall be reflected in the fiduciary's account of the administration of the estate.
- ☐ Finds all of the beneficiaries of the wrongful death claim are on an equal degree of consanguinity, are adults, and have agreed how the net proceeds allocated to the wrongful death claim are to be distributed.
- ☐ Orders distribution of the net proceeds allocated to the wrongful death claim to the surviving spouse, children, parents and other next of kin, in the equitable shares shown below, fixed by the Court having due regard for the injury and loss to each beneficiary resulting from the death and for the age and condition of the beneficiaries.

Name	Residence Address	Relationship to Decedent	Birthdate of Minor	Amount

CASE NO. _____

Orders that the share of:

- ☐ _____ a minor(s) be deposited pursuant to R.C. 2111.05.
- ☐ _____ a minor(s) be paid to the guardian of the estate of such minor.
- ☐ _____ a child(ren) be deposited in a trust for the benefit of the child(ren) until twenty-five years of age.

Authorizes the fiduciary to execute a release which, upon payment, shall be a discharge of the claim.

Orders the fiduciary and the attorney to report the distribution of the proceeds within 30 days of the date of this Entry.

☐ Further orders _____

Approved:

_____ Attorney for Fiduciary	Signature Page Attached _____ Jeffrey D. Mackey Probate Judge
_____ Attorney Registration No.	_____ Date